

Terms of Reference (ToR) *For*

Policy Review and Legal Scan on Drought Governance in Bangladesh

1. Introduction

SNV is a global development partner, deeply rooted in the countries where we operate. We are driven by a vision of a better world: A world where everyone lives with dignity across every society and has equitable opportunities to thrive sustainably. We need transformations in vital agri-food, energy, and water systems to make this vision a reality. SNV contributes by strengthening capacities and catalysing partnerships in these sectors. We help strengthen institutions and effective governance, reduce gender inequalities and barriers to social inclusion, and enable adaptation and mitigation to the climate and biodiversity crises.

Building on 60 years of experience we support our partners with our technical and process expertise and methodological rigour. We do this in more than 20 African and Asian countries with a team of approximately 1,600 colleagues. By adapting and tailoring our approaches to these different contexts, we can contribute to impact at scale, resulting in more equitable lives for all.

SNV started its work in Bangladesh in 2006, designing impact-oriented and future scalable programmes that help turn poverty into prosperity. As the private sector in Bangladesh is recognised as a strong partner in economic growth and development, we focus on private sector engagement, institutional development, and local ownership of programmes. <https://www.snv.org/country/bangladesh>

SNV initiated an urban sanitation and hygiene programme in southern Bangladesh cities in 2014 and has since been proactively engaged in National level activities to support urban initiatives. Since 2021, SNV broadened its urban approach to the urban water cycle, including water supply, sanitation, solid waste, grey water, hygiene and floods& droughts. SNV's approach continues to be to support Local Authorities to address service delivery challenges and advance the sector development, through strategic engagement with Government Agencies and partnering with other experienced civil society and private sector organisations working in the sector. SNV works in close collaboration with the two responsible national departments – the Department of Public Health Engineering (DPHE) and the Local Government Engineering Department (LGED). An integral part of SNV's approach is to work with different stakeholders to set up public-private partnerships (PPPs) with clearer rules of engagement and oversight to strengthen performance accountability.

Currently, SNV is implementing a 12-city project called "Transitioning to sustainable urban water cycles in Bangladesh," which is funded by the Embassy of the Kingdom of the Netherlands in Bangladesh. This project aims to improve sanitation and hygiene, grey water, solid waste, drainage and drought management to protect the health and well-being of around 1.4 million people in 12 cities and towns by increasing access to safe, essential urban services. Moreover, the project contributes to relevant water resource management indicators for the city level over five years.

The project aims to achieve the following 6 (six) outcomes to support city-wide inclusive services: 1. Strengthened capacities to support city-wide inclusive services. 2. Increased professionalisation and financial viability of urban sanitation and solid waste services. 3. Strengthened governance, regulation, enforcement, and monitoring capacity. 4. Strengthened performance, integration and circularity of treatment, reuse, and recycling. 5. More responsive

strategic communication towards consumer behaviours. 6. Improved capacity and preparedness for city-level floods and droughts.

The project works in various geographically and ecologically diverse areas across Bangladesh. Four city corporations: Gazipur, Cumilla, Sylhet and Khulna; and eight municipalities: Shibganj, Chapainawabganj, Kushtia, Joypurhat, Lalmonirhat, Moulvibazar, Chhatak, and Bagerhat.

2. Background of the assignment

Bangladesh is globally recognized for its exposure to floods and cyclones. However, drought has become an increasingly severe climate hazard, particularly in the northwestern districts, Barind region, and drought-prone urban and peri-urban areas. Climate change, declining groundwater levels, increasing urban water demand, changing rainfall patterns, and rising temperatures are expected to intensify drought frequency and severity.

Although Bangladesh has developed several national laws, policies, plans and strategies related to disaster management, climate change, water resources, agriculture, local government, urban development and environmental protection, ***there is no dedicated legal or policy instrument specifically addressing drought risk management.*** Instead, drought-related provisions are scattered across numerous policy documents, legal instruments and sectoral strategies. The absence of a consolidated legal framework creates challenges in defining institutional mandates, coordination mechanisms, planning responsibilities, financing arrangements and implementation pathways.

As SNV is planning future interventions on drought resilience under the Sustainable Urban Water Cycles Project, a comprehensive policy review and legal scan is essential to understand:

- Existing legal and policy provisions related to drought
- Institutional framework, responsibilities and coordination mechanisms
- Identify policy inconsistencies in existing policy and legal provisions
- Opportunities for SUWC project to support the strengthening of drought governance at city/local and national level

The findings of this study will provide evidence for designing future drought reduction initiatives and supporting policy dialogue with relevant government agencies.

3. Objective of the consultancy

The objective is to conduct a comprehensive review of Bangladesh's legal, policy and institutional framework related to drought management and identify opportunities for strengthening drought governance in relation to SUWC project.

4. Illustrative activities of the consultancy

- Conduct a comprehensive desk review of national laws, policies, rules, regulations, strategies, plans and guidelines relevant to drought management
- Identify all legal provisions relevant to drought preparedness, mitigation, response and recovery
- Map institutional framework, mandates and responsibilities of relevant ministries, departments and local government institutions on drought management
- Review coordination mechanisms among agencies responsible for drought management
- Identify policy inconsistencies (if any)
- Identify opportunities/recommendations for strengthening drought governance at city and national level under SUWC project

5. Scope of work

5.1 Policy review and legal scan:

Comprehensive desk review of national laws, policies, rules, regulations, strategies, plans and guidelines relevant to drought management, including but not limited to:

- Disaster Management Act
- National Disaster Management Policy
- National Plan for Disaster Management
- Bangladesh Delta Plan 2100
- Bangladesh Climate Change Strategy and Action Plan
- National Water Policy
- Bangladesh Water Act
- National Water Management Plan
- Groundwater Management-related regulations
- National Adaptation Plan (NAP)
- National Agriculture Policy
- Standing Orders on Disaster (SOD)
- Local Government Acts
- Urban development policies
- Environmental laws
- Any other relevant legislation

Identify drought-related legal provisions and categorize according to:

- Prevention
- Mitigation
- Early warning
- Preparedness
- Response
- Recovery
- Water allocation
- Groundwater management
- Urban drought management
- Institutional coordination
- Financing
- Climate adaptation
- Any other category based on policy review findings and

5.2 Institutional Analysis

Based on the policy review assess:

- Map the institutional framework and responsibilities
- Legal mandates
- Coordination mechanisms
- Planning responsibilities
- Implementation arrangements
- Accountability mechanisms

of relevant ministries, departments and local government institutions on drought management.

5.3 Identify policy inconsistencies

Identify the policy inconsistencies which can impede the policy implementations and coordination among the responsible ministries/departments/agencies/local government.

5.4 Recommendations and reporting

Determine the opportunities/recommendations for strengthening drought governance at city/local government and national level under SUWC project especially focusing on:

- Institutional strengthening
- Improved coordination
- Urban drought governance
- Integration with climate adaptation planning
- ongoing drought reduction projects

Preparation of a comprehensive report illustrating the assignment outputs.

6. Deliverables

- Inception Report containing detailed methodology, work plan, literature review framework, stakeholder consultation plan
- Draft Policy Review and Legal Scan Report including policy review and legal scan, institutional analysis, policy inconsistencies, opportunities/recommendations for SUWC project (as detailed in section 5)
- Final Policy Review and Legal Scan Report
- Policy Brief: a concise policy brief (10-15 pages) summarizing major findings and recommendations.
- Policy Matrix: A matrix summarizing the drought relevant laws, policies, provisions, responsible institutions and others

7. Consultant Qualifications

- Demonstrated experience in policy analysis, legal review or governance studies
- Strong expertise in disaster risk management, climate change adaptation, water resources management or environmental governance
- Proven experience in legal and institutional analysis
- Experience working with government institutions and development partners.
- Excellent analytical, report writing and facilitation skills
- Experience in Bangladesh is essential

8. Team Composition

The team composition is mentioned in the bellow table, *but it is not fixed, and the consultant has the flexibility to change it for timely and quality output:*

Role	No of Positions	Qualification
Team Leader/ Policy & Governance Specialist	1	PhD/master's in Public Policy, Governance, Public Administration, Environmental Policy, Law, or related field with 10 years of experience. <i>PhD is preferable.</i>
Legal & Regulatory Specialist	1	LL.M. in Law, preferably specializing in Environmental Law, Public Law, Administrative Law, Water Law, or related field with 8 years of experience.
Institutional & Local Governance Expert	1	Master's degree in Public Administration, Governance, Development Studies, Disaster Management, Urban Planning or related field with 5 years of experience.

All the CVs must be accurate and signed by both the individual and an authorized official of the research organization/institute/firms.

9. Evaluation Criteria

The following criteria will be followed to evaluate the technical and financial proposals received:

Criteria	Score
Technical Proposal	
Overall understanding of the proposed assignment	30

Experience in relevant work/research	20
Team Composition and competency of the team members	15
Gender Equity in team composition	5
Financial proposal	
Competitiveness of the financial offer	30
Total	100

Only proposals that achieve at least 70% of the total score for the Technical Proposal will be considered for the subsequent stages of the evaluation process. The evaluation process is confidential and not open to the public.

10. Timeline:

The consultancy is expected to be completed within three (3) months from contract signing.

11. Reporting:

The consultant will report directly to the Water Sector Leader, SNV Bangladesh.

12. Duty Station

The assignment will primarily be desk-based, with stakeholder consultations in Dhaka (if required).

13. Payments

Payments will be made based on:

- 30% upon submission of the Inception Report
- 30% upon submission of the Draft Report
- 40% upon approval of the Final Report, Policy Brief and Policy Matrix

14. Confidentiality

The consultant will be required to sign a Non-Disclosure Agreement (NDA) to ensure the confidentiality of all client data and project information.

15. Application

Interested institute/agency/firms/research organizations/individual are requested to develop and submit their technical and financial proposals and work plan along with SNV Due Diligence supplier registration form in line with mentioned in this ToR. Electronic copy of the proposal duly signed should be submitted to bangladesh@snv.org with the subject line: "Policy Review and Legal Scan on Drought Governance in Bangladesh", no later than 5 p.m. (local time) on **25 August 2026**.

For any query related to the ToR, please email to: mdimamhossain@snv.org to keep CC bangladesh@snv.org

[Click here-SNV Due Diligence Supplier Registration and Vetting Form](#)